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County: los-angeles

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Case Number: 25STLC08241 Hearing Date: July 29, 2026 Dept: 25

HEARING DATE: Wed., July 29, 2026 JUDGE /DEPT: Eisenman/25

CASE NAME: Goldsmith

v. Southern California Gas Company

COMP. FILED: 10-30-25

CASE NUMBER: 25STLC08241

NOTICE: OK

PROCEEDINGS: DEMURRER

TO PLAINTIFF BARBARA GOLDSMITH'S FIRST AMENDED COMPLAINT

MOVING PARTY:

Defendant Southern California Gas

Company

RESP. PARTY: Plaintiff

Barbara Goldsmith

DEMURRER TO FIRST AMENDED COMPLAINT

(CCP §§ 430.10, et seq.)

TENTATIVE RULING:

The Court SUSTAINS WITHOUT LEAVE TO AMEND Southern California Gas Company's demurrer to Barbara Goldsmith's first amended complaint.

SoCal
Gas is to give notice.

SERVICE:

[X] Proof of
Service Timely Filed (CRC, rule 3.1300) OK

[X] Correct Address
(CCP §§ 1013, 1013a) OK

[X] 16/21 Court
Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed
July 13, 2026 [ ] Late [
] None

REPLY: Filed
July 22, 2026 [ ]
Late [ ] None

ANALYSIS:

Barbara
Goldsmith sued Southern California Gas Company (SoCal Gas) for damages under Public Utilities Code section 2106 and for an accounting, alleging that SoCal Gas overcharged her for 42 years. SoCal Gas credited to Goldsmith $565.93 in overcharges, representing 36 months of overcharges. SoCal Gas demurred to the original complaint. This Court found Goldsmith's complaint failed to state sufficient facts to support the two causes of action and sustained SoCal Gas's demurrer with leave to amend. Goldsmith then filed the first amended complaint alleging causes of action for violation of Public Utilities Code section 2106 twice, negligence, unjust enrichment, breach of statutory duty, unfair business practices, and accounting. SoCal Gas demurs to the entire first amended complaint pursuant to Code of Civil Procedure section 430.10, subdivision (e) for failure to state facts sufficient to constitute a valid cause of action.

In

support of its demurrer, SoCal Gas requests judicial notice of its Tariff Rule

No. 2 and No. 16, filed and approved by the California Public Utilities

Commission. The Court GRANTS these

requests. (Evid. Code, § 452, subd. (b);

Dollar-A-Day Rent-A-Car Systems Inc. v. Pacific Tel. & Tel. Co. (1972)

26 Cal.App.3d 454, 457–458 [“A court may take judicial notice of the provisions

of a tariff”].) SoCal Gas also requests

judicial notice of the Commission’s decision in DCOR, LLC v. So. Cal. Edison

(2013) 2013 Cal. PUC LEXIS 54, Decision 13-02-036. The Court GRANTS this request. (Evid. Code, § 452, subd. (c); Wise v.

Pacific Gas & Electric Co. (1999) 77 Cal.App.4th 287, 297.)

A demurrer must be addressed to

apparent on the face of the complaint or via proper judicial notice; the court

assumes the truth of the complaint’s properly pleaded or implied factual

allegations. (E-Fab, Inc. v. Accountants,

Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) The only issue a demurrer is concerned with

is whether the complaint, as it stands, states a cause of

action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740,

747.)

Goldsmith’s

first amended complaint purports to add causes of action for negligence, unjust

enrichment, breach of statutory duty, unfair business practices, all of which

were not alleged previously. These are

beyond the scope of the Court’s order granting Goldsmith leave to amend when it

sustained SoCal Gas’s previous demurrer.

Goldsmith therefore added the four causes of action improperly, and

SoCal Gas’s demurrer is SUSTAINED WITHOUT LEAVE TO AMEND as to the third,

fourth, fifth, and sixth causes of action.[1] (Harris v. Wachovia Mortgage, FSB

(2010) 185 Cal.App.4th 1018, 1022–1023.)

SoCal

Gas demurs to Goldsmith’s first and second causes of action for violation of

Public Utilities Code section 2106, for billing error or meter error. SoCal Gas contends that the allegations still

suffer from the same issue as the original complaint because the overcharges

are regulated and governed by the Commission and Tariff Rule No. 16, with which

SoCal Gas has fully complied.

Public Utilities Code section 701 grants the Commission the power to “supervise and regulate every public utility in the State.” All public utilities must “obey and comply with every order, decision, direction, or rule made or prescribed by the [C]omission” and must file with the Commission “schedules showing all rates, tolls, rentals, charges, and classifications.” (Pub. Util. Code, §§ 489, 702.) When filed and published by the Commission, the tariffs or rules “have the force and effect of a statute.” (Dyke Water Co. v. Public Utilities Com. (1961) 56 Cal.2d 105, 123.)

The Legislature has the power to “establish the manner and scope of review of [C]omission action in a court. (Ganter v. PG&E Corp. (2023) 15 Cal.5th 396, 401 (Ganter).) Public utilities remain liable for “any act, matter, or thing prohibited or declared unlawful,” as well as for omissions of “any act, matter, or thing required to be done.” (Pub. Util. Code, § 2106.) This private right of action is limited by Public Utilities Code section 1759, which divests all courts except the California Supreme Court and Court of Appeal of jurisdiction “to review, reverse, correct, or annul any order or decision of the [C]omission or to…enjoin, restrain, or interfere with the [C]omission in the performance of its official duties.” (Ganter, at p. 405; Pub. Util. Code, § 1759, subd. (a).) Public Utilities Code section 1759 is limited to those situations where an award of damages would not hinder or frustrate the Commission’s declared supervisory and regulatory policies. (Ganter, at p. 405.) An action is barred by Public Utilities Code section 1759 when (1) the Commission had the authority to adopt the regulation or policy, (2) the Commission actually exercised that authority, and (3) the action would interfere with the Commission’s exercise of that authority. (Ibid.)

Goldsmith’s first cause of action alleges that there was a billing error under Tariff Rule No. 16, Section C(1). That rule reads: “If either a residential or nonresidential service is found to have been overcharged due to a billing error, the Utility shall calculate the amount of the overcharge, for refund to the customer, for a period of three years. However, if it is known that the period of billing error was less than three years, the overcharge shall be calculated for only those months during which the billing error occurred." Contrary to Goldsmith's allegations, Section C(1) does not state "for the full period during which the billing error occurred." Goldsmith alleges that SoCal Gas "issued [her] a credit of $565.93, representing 36 months of overcharges based on a +3.40% meter error rate." This is in accordance with Tariff Rule No. 16, Section C(1), which dictates that the utility "shall" give the customer a refund "for a period of three years." SoCal Gas complied with this rule and issued Goldsmith the required refund accounting for three years of overcharges. The Court SUSTAINS the demurrer as to the first cause of action.

Goldsmith's second cause of action alleges there was a meter error and thus a refund was due under Tariff Rule No. 16, Section D(1). That rule reads: "If a meter is found to be registering more than two percent (2%) fast, the Utility shall refund to the customer the amount of the overcharge based on the corrected meter readings or the Utility's estimate of the gas usage either for the known period of error or, if the period of error is not known, for the period during which the meter was in use, not to exceed three years." Goldsmith contends the three-year limitation only applies when the period is not known and a full refund is required when the period is known, regardless of the duration. The Court is not persuaded. Tariff Rule No. 16 Section D—appearing before Section D(1)—states that when a meter is found to be registering incorrectly, the Utility "shall issue a refund or credit to the customer for the amount of overcharge, without interest, computed back to the date that the Utility determines the meter error commenced. The period of adjustment for meter error shall not exceed three years and shall be computed in accordance" with Section D(1). (Emphasis added.) Reading Section D in conjunction with Section D(1) indicates that the three-year limitation, as with the limitation for a billing error, applies regardless of the known period of the meter error, even if the period extends beyond three years. The language "known period of error" applies when the period is less than three years, as is the case with a billing error. As noted above, Goldsmith alleges that SoCal Gas issued a refund for three years of overcharges. Whether the period of meter error was over three years is immaterial to SoCal Gas's mandate to refund for a maximum of three years' worth of overcharges. Accordingly, Goldsmith fails to allege sufficient facts to state a cause of action for a violation of Public Utilities section 2106 based on a meter error. Thus, the Court SUSTAINS the demurrer as to the second cause of action.

Goldsmith's seventh cause of action, for an accounting, also fails. "A right to an accounting is derivative; it must be based on other claims." (Janis v. Cal. State Lottery Com. (1998) 68 Cal.App.4th 824, 833–834.) As the Court finds Goldsmith fails to state sufficient facts to support the first or second cause of action, the accounting cause of action fails as well since it is based on those causes of action. (See ibid.) Accordingly, the Court SUSTAINS the demurrer as to the seventh cause of action.

Accordingly, SoCal Gas's demurrer is SUSTAINED IN ITS ENTIRETY.

Contrary to Goldsmith's contentions, when SoCal Gas knew or should have known the gas meter was defective is immaterial, as SoCal Gas already refunded Goldsmith the maximum amount permitted under its Tariff Rules. Tarriff Rule No. 16 expressly and clearly limits SoCal Gas's liability for overcharges to a maximum period of three years. Goldsmith does not challenge the Commission's authority or exercise of authority regarding regulation of overcharge refunds, and the relief sought would interfere with the Commission's authority as it would contravene Tariff Rule No. 16's terms. (Ganter, supra, 15 Cal.5th at p. 405.) Given that Goldsmith had the opportunity to amend already and offers no argument on amending successfully, Goldsmith does not carry her burden to demonstrate leave to amend should be granted here. Accordingly, the entire demurrer is SUSTAINED WITHOUT LEAVE TO AMEND.

SoCal Gas is to give notice.

[1] In any event, the demurrer to these causes of action would be properly sustained as they all rely on the same contention as the first and second causes of action—that SoCal Gas did not refund Goldsmith for the entire amount of alleged overcharges—and the Court finds that contention fails to allege any liability on SoCal Gas's part.